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NORTH DISTRICT OF CALIFORNIA
OAKLAND OFFICE

UNITED STATES DISTRICT COURT

NORTHERN DISTRICT OF CALIFORNIA

BRENDAN NGEHSI NEWANFORBI, Plaintiff, v. CAPTAIN G. SERRATO, in his individual and official capacities as Commander, Dublin Area, California Highway Patrol, Defendant.	Case No. 4:26-cv-05953-ASK **NOTICE OF ERRATA RE FIRST AMENDED COMPLAINT** *(Correcting Dkt. No. 1, ¶¶ 11-12)*

NOTICE OF ERRATA RE FIRST AMENDED COMPLAINT

TO THE COURT AND ALL PARTIES AND THEIR ATTORNEYS OF RECORD:

Plaintiff Brendan Ngehsi Newanforbi ("Plaintiff"), proceeding in pro per, respectfully submits this Notice of Errata in connection with the concurrently filed First Amended Complaint ("FAC"). The purpose of this notice is to explain the reason for the amendment and to address the effect on the Court's prior orders.

I.

REASON FOR AMENDMENT

The original Complaint (Dkt. No. 1, filed June 17, 2026) disclosed two related pending actions in paragraphs 11 and 12 but inadvertently omitted a third: *Newanforbi v. California Highway Patrol, et al.*, Alameda County Superior Court Case No. 26CV191136 (filed May 29, 2026). That state action is a petition for writ of mandate challenging the same April 20, 2026 U-Visa certification denial at issue in this case and names Captain G. Serrato in his official capacity as a respondent.

In consequence of the omission, paragraph 12 of the original Complaint contained the verified representation that "[n]either related action asserts any claim against Captain Serrato" and that "[n]either related action challenges the April 20, 2026 denial of the U Visa certification request." These statements were incomplete because they did not account for the state writ action. The FAC corrects this disclosure.

II.

EXPLANATION

The omission was inadvertent. Plaintiff, a pro se litigant managing multiple related cases across multiple courts, focused the original disclosure on actions arising from the underlying November 1, 2024 incident and did not appreciate that the state writ action -- which seeks a different form of relief against different defendants in different capacities in a different court system -- should have been disclosed as a related action. Upon identifying the omission, Plaintiff acted promptly to correct it.

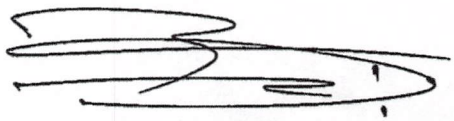
III.

EFFECT ON PRIOR ORDERS

The FAC does not alter the factual allegations or legal theories of the original Complaint. The sole substantive change is the correction of the related-actions disclosure in paragraphs 11

and 12. The Court's prior Order Re Motion to Proceed In Forma Pauperis (Dkt. No. 5, filed June 29, 2026) -- which granted Plaintiff's IFP application and, upon screening under 28 U.S.C. section 1915(e)(2), found that the Complaint states plausible claims for relief -- was based on the factual allegations underlying Plaintiff's constitutional claims (the dashcam evidence, the fabricated arrest report, the section 851.6 Detention Certificate, and the boilerplate denial), none of which are altered. Plaintiff respectfully requests that the Court's prior screening order remain in effect.

Dated: July 13, 2026



BRENDAN NGEHSI NEWANFORBI

Plaintiff, In Pro Per